BRENDAN NGEHSI NEWANFORBI
Petitioner, In Pro Per
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
E-mail: bnn.cdl@gmail.com

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF ALAMEDA

BRENDAN NGEHSI NEWANFORBI, Petitioner, v. CALIFORNIA HIGHWAY PATROL; G. SERRATO, in his official capacity as Captain and Commander of the California Highway Patrol Dublin Area; and DOES 1 through 10, inclusive, Respondents.	Case No. 26CV191136 **PETITIONER'S NOTICE OF MOTION AND MOTION FOR ISSUANCE OF PEREMPTORY WRIT OF MANDATE; MEMORANDUM OF POINTS AND AUTHORITIES** *(Code Civ. Proc., §§ 1085, 1088, 1090; Pen. Code, § 679.10)* Date: January 8, 2027 Time: 9:00 a.m. Dept.: 25 Judge: Hon. Jenna M. Whitman Reservation ID: 958052306492 Action Filed: May 29, 2026

NOTICE OF MOTION AND MOTION

TO RESPONDENTS AND THEIR COUNSEL OF RECORD:

PLEASE TAKE NOTICE that on January 8, 2027, at 9:00 a.m., or as soon thereafter as the matter may be heard, in Department 25 of the Alameda County Superior Court, René C. Davidson Courthouse, 1225 Fallon Street, Oakland, California, Petitioner Brendan Ngehsi Newanforbi will and hereby does move for judgment on the First Cause of Action of the Verified Petition and for issuance of a peremptory writ of mandate directed to Respondent California Highway Patrol ("CHP") concerning its April 20, 2026 denial of Petitioner's April 9, 2026 request for Form I-918, Supplement B certification. Petitioner requests the following

relief, in the alternative and in this order:

1. Certification. A writ directing CHP to set aside the April 20, 2026 denial and, within 30 days after service of the writ, to complete, sign and deliver the requested Form I-918, Supplement B, and to file a return within 45 days after service.

2. Reconsideration. If the Court finds that CHP erred but that a determination remains for CHP to make, a writ directing CHP to set aside the denial and, within 30 days after service, decide the request anew on the full record in conformity with the Court's findings and Penal Code section 679.10, and to file a return within 45 days after service.

3. Focused hearing. If the Court concludes that an essential factual question cannot be decided on the papers, an order under Code of Civil Procedure section 1090 setting a nonjury evidentiary hearing limited to the issues identified in Part V.E, and directing CHP to produce, or lodge for in camera review, any document responsive to Request for Production No. 8 dated on or before April 20, 2026.

The motion is made under Code of Civil Procedure sections 1085, 1086, 1088 and 1090 and Penal Code section 679.10. It is based on this notice, the memorandum below, the concurrently filed Declaration of Brendan Ngehsi Newanforbi and its exhibits, the Verified Petition and its exhibits, the November 1, 2024 CHP recording lodged with the Court on September 8, 2026, Respondents' Verified Answer filed October 12, 2026, the Court's order of August 29, 2026, the records and files of this action, and any evidence and argument received at the hearing.

Dated: _____, 2026

Respectfully submitted,

_____

BRENDAN NGEHSI NEWANFORBI

Petitioner, In Pro Per

MEMORANDUM OF POINTS AND AUTHORITIES

I. INTRODUCTION

Captain Serrato denied Petitioner's request for certification on one ground: that the November 1, 2024 incident involved no "qualifying criminal activity" under Penal Code section 679.10. (Pet. Ex. 1.) He did not find that Petitioner was unhelpful, and he relied on no other ground. The denial therefore stands or falls on a single premise: that Petitioner's arrest and four-day custody were lawful. If they were not, the custody was false imprisonment, an offense the statute lists by name, and subdivision (g)(1) required certification.

This Court has identified how that premise is tested. If the Court credits Petitioner's showing that the officers' reported observations were untrue, "it could reasonably find probable cause for arrest was lacking, which could support a finding that the CHP abused its discretion." (Order, Aug. 29, 2026, p. 4.) The record now contains what the Court did not have at demurrer: CHP's verified Answer, CHP's own production of its arrest report, warrant affidavit and laboratory results, and the lodged recording.

That record does not support every claim in Petitioner's earlier papers, and this motion does not repeat them. It does show that CHP's report misstates the field sobriety testing on which the arrest decision expressly relied; that no officer mentioned the reported odor of alcohol even while examining the vehicle's contents by smell; and that the arresting officer told Petitioner, seconds before handcuffing him, that whether to arrest remained within his discretion. Petitioner asks the Court to decide whether the arrest was supported by probable cause and to issue the writ that follows. If that question cannot be decided on the papers, Petitioner asks for a hearing limited to the facts identified in Part V.E.

II. STATEMENT OF FACTS

A. The encounter.

At about 12:55 a.m. on November 1, 2024, CHP Officers Meza-Gonzalez and Melano stopped behind a parked Tesla on the right shoulder of eastbound Interstate 580 to conduct a welfare check. (Answer ¶¶ 34-35; Decl. Ex. A, AGO 000031.) Petitioner was asleep in the driver's seat. (AGO 000031.) No officer saw the vehicle move; driving was recorded as

admitted, not observed. (Answer ¶ 34; AGO 000040.) After knocking, Officer Melano opened the passenger door. (Pet. Ex. 5 at 00:56:40-00:56:43.)

Petitioner told the officers he was driving home to Stockton from a party in Oakland and had not been drinking. (Id. at 00:57:11, 00:58:36, 01:00:34-01:00:56; AGO 000032.) Officer Melano took a cup from the vehicle, examined it, and said: "Is it water? No this is piss. This is pee. ... It smells like piss." (Pet. Ex. 5 at 00:58:49-00:58:59; Answer ¶ 36.) An empty Mike's Hard Lemonade can was later retrieved; Petitioner said he had not drunk it. (Pet. Ex. 5 at 00:59:46-01:00:09; Answer ¶ 47.) Petitioner identified his location as Livermore, read highway signs aloud, and spelled his surname. (Answer ¶¶ 37, 46.)

Officer Meza-Gonzalez administered horizontal gaze nystagmus (HGN) and modified Romberg tests. (Pet. Ex. 5 at 01:05:22-01:08:45.) He described a one-leg-stand test; Petitioner said he did not know if he could balance, and the officer told him he did not have to do it. (Id. at 01:08:58-01:10:12.) The officer then offered a walk-and-turn test. Petitioner answered, "I mean I think we can do that." Officer Melano said the shoulder was "uneven ground. I wouldn't do that one," and Officer Meza-Gonzalez replied, "Alright then." (Id. at 01:10:14-01:10:30.)

The officer next requested a preliminary alcohol screening (PAS) test and told Petitioner, "You're not required to do this." Asked what would happen if he declined, the officer said: "If you choose to not consent to it then it'll be up to my discretion whether I put you under arrest for DUI or not." Petitioner declined at 01:11:15. One second later the officer told him to turn around and place his hands behind his back, and handcuffed him. (Id. at 01:10:33-01:11:33; AGO 000030 [PAS refused, 0111]; AGO 000033 [arrest, 0112].) Petitioner's blood was drawn under a warrant at 2:38 a.m., and he was booked into Santa Rita Jail, where he remained until November 5, 2024. (Answer ¶¶ 40-41; AGO 000033, 000048-000049.)

B. What CHP's report says.

The arrest report records a "Strong" odor of an alcoholic beverage, red and watery eyes, "Slurred" speech, and that Petitioner "seemed very confused and disoriented" on waking. (AGO 000030, 000032.) It records HGN clues, lack of convergence, and a Romberg estimate of 43 seconds for 30, with eyelid flutters. (AGO 000031.) Of the other two tests it states: "One Leg

Stand: Newanforbi chose not to perform this test and related it was difficult. Walk and Turn: Newanforbi chose not to perform this test and related it was difficult." (Ibid.) It states that the officer "explained and demonstrated a series of Field Sobriety Tests to Newanforbi, which he did not perform as explained and demonstrated," and lists "Newanforbi's poor performance on the FST's" as a basis for arrest. (AGO 000032.) The sworn warrant affidavit told the magistrate that Petitioner "did not perform" the field sobriety tests "as instructed or demonstrated." (AGO 000049.) CHP admits that neither officer said aloud that he smelled alcohol from the vehicle or from Petitioner, and that neither told Petitioner his speech was slurred. (Answer ¶¶ 37, 44, 45.)

C. The laboratory result and the outcome.

The blood drawn at 2:38 a.m., about one hour and forty minutes after contact, measured 0.073 ± 0.004 grams percent ethanol. (AGO 000034.) No criminal charge was filed. (Answer ¶ 42.) On November 5, 2024, CHP released Petitioner with a certificate under Penal Code sections 849 and 851.6. (Ibid.; Pet. Ex. 7.)

D. The request and the denial.

On April 9, 2026, Petitioner asked CHP to certify Form I-918, Supplement B, and submitted a memorandum identifying false imprisonment and unlawful criminal restraint, a transcript of CHP's recording keyed by timestamp to the asserted inaccuracies in CHP's report, the report itself, and the release certificate. (Answer ¶¶ 2, 49; Pet. Exs. 2-3, 5-7.) Lieutenant Paul replied on April 10 that the request was "under review." (Answer ¶ 59.) On April 20, Captain Serrato denied it:

> "A thorough review of this incident was conducted. Unfortunately, this incident does not meet the standard of qualifying criminal activity identified in Section 679.10 of the California Penal Code (PC), nor does it meet the standards of the Immigration and Nationality Act Sectioh [sic] 101(a)(15)(U)(iii). Additionally, this review found no substantially similar qualifying criminal activity as defined in Section 679.10(d) PC." (Pet. Ex. 1.)

E. CHP's production.

Petitioner's Request for Production No. 8 sought CHP's April 2026 certification file. [VERIFY BEFORE FILING AGAINST THE ACTUAL RESPONSE AND LOG: CHP's October 23, 2026 response and production contain no document reflecting what was reviewed before the April 20 decision, and CHP's privilege log identifies a memorandum dated May 9, 2026 reviewing the MVARS (dashcam) video.] (Decl. ¶¶ 5-6, Exs. B-C.)

III. PROCEDURAL HISTORY

Petitioner filed the Verified Petition on May 29, 2026. On August 29, 2026, the Court overruled CHP's demurrer to the First Cause of Action, sustained it without leave to amend as to the Second and Third, and sustained it with leave to amend as to the Fourth, which Petitioner did not amend. Respondents Paul and Dutra were dismissed by stipulation. CHP and Captain Serrato filed a Verified Answer on October 12, 2026, and CHP produced documents on October 23, 2026.

IV. STANDARD OF REVIEW

Traditional mandate lies to compel performance of a duty the law specially enjoins and to correct an abuse of discretion. (Code Civ. Proc., §§ 1085, subd. (a), 1086.) The Court asks whether the agency's decision was "arbitrary, capricious, entirely lacking in evidentiary support, or unlawfully or procedurally unfair" (*Western States Petroleum Assn. v. Superior Court* (1995) 9 Cal.4th 559, 574), and whether the agency adequately considered all relevant factors (*American Coatings Assn. v. South Coast Air Quality Management Dist.* (2012) 54 Cal.4th 446, [pin cite]). Because CHP acted informally and the facts are disputed, the Court may receive evidence beyond the materials CHP considered. (*Western States*, at p. 576.) Mandate does not ordinarily dictate how discretion is exercised, but it compels a particular act when only one lawful choice remains. (*Common Cause v. Board of Supervisors* (1989) 49 Cal.3d 432, 442.) Where an essential fact is disputed, the Court may try that issue. (Code Civ. Proc., § 1090.) Petitioner bears the burden of proof.

V. ARGUMENT

A. The denial rests on one reviewable premise: that the custody was lawful.

Section 679.10 lists "[u]nlawful criminal restraint" and "[f]alse imprisonment" as qualifying criminal activity and reaches offenses whose nature and elements are substantially similar. (Pen. Code, § 679.10, subds. (c)(18)-(19), (d).) It contains no exception for restraint imposed by peace officers. False imprisonment is "the unlawful violation of the personal liberty of another." (Pen. Code, § 236.) A public officer who, under color of authority but without lawful authority, arrests or detains a person against his will commits a misdemeanor (Pen. Code, § 146, subd. (a)), an offense substantially similar to false imprisonment. A warrantless arrest is lawful only if supported by probable cause. (Pen. Code, § 836; Veh. Code, § 40300.5.) Certification requires no charge, prosecution or conviction. (Pen. Code, § 679.10, subd. (k)(1).)

The restraint is admitted: Petitioner was handcuffed, transported, and jailed for four days. (Answer ¶¶ 39-41.) The only contested element is lawful authority, which turns on whether, at 1:12 a.m., the facts known to the officers "would persuade someone of 'reasonable caution'" that Petitioner had driven under the influence. (*People v. Thompson* (2006) 38 Cal.4th 811, 818.) CHP's denial necessarily answered that question yes. Reviewing the denial requires the Court to answer it on the evidence.

B. On the full record, the probable-cause showing is materially weaker than CHP's report states.

1. The report misstates the field sobriety tests on which the arrest expressly relied.

Of the four tests the report lists, two were never performed. The report attributes the walk-and-turn to Petitioner's choice and his statement that it was "difficult." (AGO 000031.) The recording shows the opposite: Petitioner said he thought he could do it, and Officer Melano said he "wouldn't do that one" on the uneven shoulder. (Pet. Ex. 5 at 01:10:23-01:10:30.) The report then states that the tests were "explained and demonstrated" and not performed, and lists "poor performance on the FST's" as a basis for arrest (AGO 000032); the affidavit made the same representation to the magistrate (AGO 000049). As to the walk-and-turn, that account is not accurate. The point is narrow, but it concerns the category of evidence the report itself

identifies as a reason for the arrest, and it shows the report cannot be accepted without comparison to the recording.

2. The odor entries are absent where the recording would capture them. The report states that the officer smelled "the distinct odor of an alcoholic beverage emitting from within the vehicle" when the door was opened. (AGO 000032.) Within two minutes, Officer Melano held the open cup from inside that vehicle, smelled it, and identified the odor aloud as urine. (Pet. Ex. 5 at 00:58:49-00:59:04.) In roughly fifteen minutes of recorded pre-arrest questioning, no officer mentions alcohol odor, and CHP admits as much. (Answer ¶ 44.) Petitioner does not contend that an unspoken observation is necessarily false. But the officers' recorded attention to the smell of the vehicle's contents, without mention of the "strong" odor later reported, is evidence the Court may weigh in deciding whether that entry is reliable.

3. The recorded speech and orientation can be assessed directly. The report describes slurred speech and confusion. (AGO 000030, 000032.) The recording captures Petitioner identifying his location, reading signs, spelling his surname, and giving an extended, organized explanation of why he stopped to sleep. (Pet. Ex. 5 at 00:59:57, 01:00:41-01:00:46, 01:01:21-01:01:56; Answer ¶¶ 37, 46.) The officers found him asleep (AGO 000031); disorientation on being awakened near 1:00 a.m. is equally consistent with the fatigue he described. The Court can listen to the lodged recording and decide.

4. The arresting officer treated the arrest decision as open until the voluntary test was declined. Before Petitioner answered, the officer told him that if he declined the PAS test, "it'll be up to my discretion whether I put you under arrest for DUI or not." Handcuffing began one second after he declined. (Pet. Ex. 5 at 01:11:03-01:11:16.) Probable cause is measured objectively, and the officer's state of mind does not control. (*Devenpeck v. Alford* (2004) 543 U.S. 146, 153.) But his contemporaneous words are evidence of how strong the observable signs were at the time. In his own judgment, the decision was still open until Petitioner exercised a choice the officer had just told him he was free to make.

5. CHP's remaining evidence does not end the inquiry. CHP will rely on the HGN and Romberg results, red and watery eyes, a wristband, admitted driving from a party, the

empty can, and the location and hour. (AGO 000030-000032.) Petitioner does not ask the Court to disregard them. The Romberg estimate in the report matches the recorded timer, and Petitioner does not claim he passed that test; the HGN entries are the officer's visual observations, which audio cannot contradict. The question is whether those indicators, without the misstated test results and with the odor, speech and orientation entries weighed against the recording, would persuade a person of reasonable caution that Petitioner had driven while impaired. *Espinoza v. Shiomoto* (2017) 10 Cal.App.5th 85 does not answer that question. It affirmed a trial court's credibility findings made after a hearing, on a record that included stumbling, an odor of alcohol detectable in open air, dropped keys, and a refusal of all field tests. Here, the reliability of the officer's account is itself the disputed issue, and the recording supplies an objective check on it. [VERIFY Espinoza facts against the opinion before filing.]

The laboratory result does not change this analysis. Probable cause depends on the facts known to the officer at the time of arrest (*Thompson*, *supra*, 38 Cal.4th at p. 818), not on testing completed weeks later. The 0.073 result, from blood drawn an hour and forty minutes after contact, is below the 0.08 per se level, does not itself establish impairment, and led to no charge. (AGO 000034; Answer ¶ 42.) Petitioner does not offer the absence of charges or the section 851.6 certificate as findings that probable cause was lacking; they show only that no prosecutor or CHP official concluded the evidence warranted a criminal complaint.

C. If probable cause was lacking, section 679.10 required certification.

If the Court finds that the arrest lacked probable cause, the custody that followed lacked lawful authority and was false imprisonment within section 679.10, subdivision (c), or unlawful detention substantially similar to it under subdivision (d). The remaining statutory condition is helpfulness. Petitioner reported the conduct to CHP and to the Commission on Peace Officer Standards and Training, supplied a transcript of CHP's own recording keyed to the asserted inaccuracies, and has never refused a request for assistance; CHP admits that no investigating entity ever asked him for any. (Answer ¶¶ 49, 54, 57; Decl. ¶ 11.) Helpfulness is presumed in that circumstance. (Pen. Code, § 679.10, subd. (h).) Petitioner's refusal of DUI testing concerned the investigation of him, not the investigation of the officers. CHP's denial did not

rely on helpfulness. (Pet. Ex. 1.) With both conditions met, the certifying official "shall certify" (Pen. Code, § 679.10, subd. (g)(1)), and no discretionary choice remains for the writ to respect. (*Common Cause*, *supra*, 49 Cal.3d at p. 442.) Petitioner raises helpfulness only as an element of the First Cause of Action.

D. Alternatively, the denial cannot stand because the record does not show CHP considered the evidence the request placed before it.

Petitioner does not contend that the denial letter is too brief; the Court has held that section 679.10 requires detailed reasons only when non-cooperation is the ground. (Order, p. 4.) The point is different. The April 9 request identified, by timestamp, where CHP's own recording was said to contradict CHP's report. (Pet. Ex. 3.) Whether a qualifying crime occurred could not reasonably be decided without examining that evidence. [VERIFY:] CHP's response to the request for its April 2026 certification file contains no document showing that anyone reviewed the recording before April 20, and the only documented review of the video CHP has identified is dated May 9, 2026. (Decl. ¶¶ 5-6, Exs. B-C.) A decision that does not consider the relevant evidence before it is arbitrary. (*American Coatings*, *supra*, 54 Cal.4th at p. [pin].) If the Court does not decide the probable-cause question itself, it should vacate the denial and direct CHP to decide the request on the full record. [DELETE THIS PART D IF THE PRODUCTION SHOWS PRE-APRIL 20 REVIEW OF THE RECORDING.]

E. The writ should follow the findings the Court makes.

Certification. On findings that the arrest lacked probable cause and that Petitioner meets the helpfulness condition, the Court should direct CHP to set aside the denial and, within 30 days after service, complete, sign and deliver Form I-918, Supplement B, with a return within 45 days.

Reconsideration. On a finding that CHP decided the request without considering the evidence it identified, the Court should direct CHP to set aside the denial and, within 30 days after service, decide the request anew, considering the lodged recording and the record before this Court, applying the Court's findings, and resting on no ground excluded by section 679.10, subdivision (k), with a return within 45 days.

Focused hearing. If the Court cannot decide the probable-cause question on the papers, Petitioner asks the Court to set a nonjury hearing under Code of Civil Procedure section 1090 limited to (1) whether the report's entries concerning odor, speech, orientation and the walk-and-turn test are accurate when compared with the recording, and (2) what CHP reviewed before April 20, 2026; and to direct CHP to produce, or lodge for in camera review, any document responsive to Request No. 8 dated on or before April 20, 2026.

VI. CONCLUSION

The April 20 denial depends on a premise this Court can test: that Petitioner was lawfully arrested and held. Petitioner respectfully requests that the Court test it on the evidence and issue the writ that the resulting findings require.

Dated: _____, 2026

Respectfully submitted,

_____

BRENDAN NGEHSI NEWANFORBI

Petitioner, In Pro Per